

		Finally, there is no evidence as to what email address would be used for substituted service for each of the three defendants or why that email address is appropriate. For the forgoing reasons, the motion is DENIED, without prejudice. The Clerk shall give notice.
13	Zou v. Ford Motor Co. et al	Before the Court is the Demurrer filed on 1/5/26 by Defendants Ford Motor Company ("Ford") and David Wilson's Villa Ford of Orange ("Dealer") (together "Defendants"), as to the First Amended Complaint ("FAC") filed by Plaintiff Xing Zou ("Plaintiff") on 12/2/25. The Demurrer as to the First, Second, Third and Fourth Causes of Action (each a "COA"), to the extent based on the time limits in C.C.P. § 871.21, is OVERRULED. The Court rejects application of the six-year statute of repose under § 871.21(b). "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (<i>Aronson v. Superior Court</i> (1987) 191 Cal.App.3d 294, 297-298.) The statute became effective on January 1, 2025, but by then, more than six years had elapsed since Plaintiff's purchase of the vehicle. Plaintiff's rights would thus have been immediately cut off if § 871.21 were applied. However, the Demurrer as to COA 4, based on Comm. Code §2725, is SUSTAINED with 15 days leave to amend. The limitations period for breach of the implied warranty of merchantability under the Song-Beverly Consumer Warranty Act is four years. (Comm. Code §2725; <i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1304.) As the vehicle at issue was purchased "on or about February 10, 2018 (FAC ¶ 7), the claim thus appears to be time-barred. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not suffice. (<i>Carrillo v. County of Santa Clara</i> (2023) 89 Cal.App.5th 227, 234.) Here, Plaintiff has stated only vague and conclusory allegations to support his delayed discovery claim. (See FAC ¶¶ 33, 37, 42-44.) For COA 5, the Demurrer is OVERRULED. COA 5 asserts a claim for Negligent Repair against Dealer. Defendants argue that the claim is barred by the economic loss rule ("ELR"). But the ELR does not apply to a claim based on negligent performance of services. (<i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777.)

		For COA 6, the Demurrer is SUSTAINED, with 15 days leave to amend. The claim as pled appears to be time-barred under C.C.P. § 338(d): the vague assertions in the FAC at ¶ 37 do not suffice to allege delayed discovery. The claim as pled also lacks adequate specificity. The elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) defendant intended to defraud plaintiff by intentionally concealing or suppressing the fact; (4) plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40.) Every element must be alleged in full, factually and specifically. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) The specificity requirement “provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship.” (<i>Rattagan v. Uber Technologies, Inc.</i>, supra, 17 Cal.5th at 43.) Here, Plaintiff has provided only a vague description of the alleged defect(s) in his vehicle (FAC ¶¶ 78-81), without identifying what specifically occurred, when and how the defect(s) was discovered, what specific information was allegedly known to Ford concerning that defect, and when. Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Greater specificity is required. However, Defendants’ argument under the ELR fail here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i>, supra, 17 Cal.5th at 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent s based on the ELR, thus fails. Defendants are to give notice of this ruling.
14	Taxrise, Inc. vs. Vyapay, Inc.	Plaintiff Taxrise, Inc.’s (“Plaintiff”) unopposed Motion for Summary Judgment, or in the Alternative, Summary Adjudication (“Motion”) is DENIED. Plaintiff moves for summary judgment, or alternatively, summary adjudication on each of its five causes of action (“COA”) solely against defendant Wain Swapp (“Swapp”). (Civ. Proc. Code § 437c(p)(1) and (f).) COA No. 1 – Breach of Written Contract